

M/s Tirupati Cylinders Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 27 February 2017 · WRIT - C No. 24680 of 2014 · **Writ disposed as infructuous; 4.20 demand undecided**

HEADNOTE

A consumer's writ to quash a demand for additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005 was disposed of as infructuous on counsel's statement that the petition had become infructuous with time. The High Court did not decide the demand. An earlier Division Bench had, without prejudice and following a similar pending writ, restrained the licensee from demanding additional security until further orders.

FACTUAL SUMMARY

Paschimanchal Vidyut Vitran Nigam Ltd. issued a 2 April 2014 demand notice requiring M/s Tirupati Cylinders Ltd. of Muzaffarnagar to furnish additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005. The consumer sought quashing of that notice, pointing to an interim order of 7 October 2009 in a similar writ by M/s Supreme Ceramics Limited. A Division Bench connected the petitions and, without prejudice, restrained the licensee from demanding additional security until further orders. In 2017 counsel stated that the writ had become infructuous with time.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

A writ seeking to quash a licensee's demand for additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005 was disposed of as infructuous on the petitioner's statement that the petition had become infructuous with the passage of time; the demand was not decided on merits. Earlier, a Division Bench had connected the matter with a similar pending writ and, without prejudice to the parties' rights, restrained the licensee from demanding additional security until further orders. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY COULD BE DEMANDED UNDER CLAUSE 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Petition disposed of as infructuous without examining the demand notice dated 02.04.2014 ¶ 2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd. Writ Petition No. 51844 of 2009, order dated 7.10.2009 (Allahabad High Court)			1	Referred